

Compared to the 150-pound male described above, your body weight can make some difference in the BAC and the effects of alcohol. No one has immunity to the effects of alcohol. It is a simple fact: the more you drink in a given period of time, the higher your BAC will be and the less safely you will drive.

It takes only a few drinks to increase your BAC to levels at which it is illegal to drive. And remember, the effects of alcohol on your ability to drive begin at even lower BAC levels after just one drink.

Eating before or while you drink helps slow the absorption of alcohol somewhat, but it cannot prevent intoxication or impairment if you have too much to drink.

The only method to effectively reduce your BAC is not to drink over a period of time. Coffee, exercise and cold showers cannot reduce your BAC and the effects of alcohol. They can help you remain awake, but it cannot change your BAC or make you sober.

CHEMICAL TESTS

Chemical tests use blood, breath, urine or saliva to measure the BAC of a person. If you are arrested for an alcohol or drug related violation, the police officer will likely request that you submit to a chemical test (breath test analyzer). Under New York's "Implied Consent" law, when you drive a car in this state you are considered to have given your consent to take this type of test.

Chemical test refusal is a separate issue from whether you were guilty of an alcohol or drug-related violation. If you refuse to take the test after being arrested, your driver license will be suspended when you are arraigned in court on the alcohol or other drug-related charge. In addition, the fact that you refused a chemical test can be brought up in court when you are tried on the alcohol or drug-related charge. If a DMV hearing later confirms you refused the test, your driver license will be revoked even if you are found not guilty of the alcohol or other drug-related violation. For information about driver license

revocations and civil penalties for chemical test refusals, see Chapter 2.

THE CONSEQUENCES

The table "Penalties for Alcohol/Drug Related Violations" describes fines, surcharges, license penalties and possible imprisonment if you are convicted of an alcohol or drug-related violation. Impaired or intoxicated driving can also have other serious results.

Repeat Offenders

Drivers with repeat dangerous driving convictions in New York State face one of the toughest licensing policies in the nation. These regulations call for:

- **Lifetime Record Review by DMV:** DMV will review the lifetime record of all drivers who apply to have a license reinstated after a revocation.
- **Permanent License Denial for Persistently Drunk & Dangerous Drivers:** After conducting a lifetime record review, DMV will deny any application for reinstatement of a license after revocation if the applicant has:
 - Four alcohol or drug related driving convictions or incidents in their lifetime, or
 - Three alcohol or drug related driving convictions or incidents in the 25 year look back period plus at least one other serious driving offense during that period. A serious driving offense includes: a fatal crash, a driving-related penal law conviction, an accumulation of 20 or more points assessed for driving violations within the 25 year look back period or having two or more driving convictions during the 25 year look back period each worth five points or more.
- **Delayed Re-Licensing, Driving Restrictions, & Interlocks for Other Drivers with Repeated Alcohol- or Drug-Related Driving Convictions:** For those drivers seeking reinstatement of a license after revocation who have three alcohol- or drug-related driving convictions or incidents but no